

Sunil Kumar v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 11 January 2021 · WRIT - C No. 26629 of 2020 · WRIT - C No. 26629 of 2020 · **Writ disposed; fresh representation to be decided under clause 4.38**

HEADNOTE

A commercial consumer sought certiorari against a 11 September 2020 demand notice and mandamus for a permanent disconnection certificate with effect from 24 May 2018. The Allahabad High Court did not decide the demand or the certificate. It disposed of the writ by directing the petitioner to file a fresh representation within two weeks, to be considered and decided under clause 4.38 of the Electricity Supply Code, 2005 after opportunity of hearing.

FACTUAL SUMMARY

Sunil Kumar, a commercial consumer (no. 900/5012/188486) of a flour mill, sought quashing of a demand notice dated 11 September 2020 and a permanent disconnection certificate with effect from 24 May 2018. He stated the connection was installed on 31 December 2018, the mill was not running, and disconnection applications dated 24 May 2018 and 3 December 2018 remained undecided until a recovery citation issued. The Power Corporation said the claim should go to the concerned authority under clause 4.38.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

permanent disconnection on consumer request

HOLDING

The writ seeking quash of the demand notice and a permanent disconnection certificate is disposed of with a direction that the petitioner file a fresh representation within two weeks, to be considered and decided under clause 4.38 of the Electricity Supply Code, 2005 after opportunity of hearing. ¶ 1

PRINCIPLE TAGS

permanent-disconnection-procedure-governed-by-clause-4.38

The Court treated clause 4.38 as the governing procedure for the pending request for permanent disconnection and sent the matter to the licensee for decision on a fresh representation, without granting a certificate or quashing the demand in writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE DEMAND NOTICE DATED 11.09.2020 AND THE RECOVERY CITATION

Writ disposed without examining the bill or citation on merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO A PERMANENT DISCONNECTION CERTIFICATE WITH EFFECT FROM 24.05.2018

Court directed a fresh representation under clause 4.38 rather than granting or refusing the certificate. ¶ 1